TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
MAY 24, 2021
MINUTES

STAFF REPORT

Present: Barry Wolff, Chair, Stephen Wood, Megan Stevens, Julian Hopkins.
Absent: Stephen Duke, Beth Santilli, Elliott Barrow.
Staff: Michael Robertson, David Pagliarini, Ken Rhye, Lynnette Lynes

Mr. Wolff called the meeting to order at 6:24 pm.

A. Approval of Agenda
B. Approval of Minutes

▶ *Mr. Wood moved for approval of the minutes. Mr. Hopkins seconded the motion. All in favor.*

C. Public Comment
D. General Correspondence

▶ There being no comments or correspondence, Mr. Wolff continued with the agenda.

E. Explanation of Procedures

▶ Mr. Wolff reviewed the procedures with the public.

F. Administration of Oath

▶ Mr. Wolff administered the oath to those speaking.

G. Business

1. **Case V-10-2021, 153 Pondsbury Rd., TMS# 535-06-00-156. Request for relief from the strict application of §156.227 Tree Protection Zones (TPZ) to allow a six-foot encroachment into the protective zone of a 46-inch oak. The ordinance requires a 46-foot diameter protective zone.**
2. **Case V-11-2021, Ben Marino Way (formerly Recreation Way), TMS# 598-03-00-107. Request for relief from the strict application of §156.201 Bufferyards to allow elimination of required plantings in**

the Type B buffer along the shared 1,186 linear feet of property between the recreation site and Mount Pleasant Regional Airport-Faison Field. The 10-foot buffer area will be provided without the required plantings. (This item was originally deferred at the April meeting.)

These items were withdrawn by the applicant.

3. **Case V-14-2021, Whipple Road, Mount Pleasant Tennis Complex, TMS# 559-04-00-103. Request for relief from the strict application of §156.102 (A)(1) to allow refurbishment of existing 40-foot tennis court light poles. The ordinance restricts height to 35-feet.**

- Mr. Robertson reviewed staff comments with the Board.

- Mr. Ken Rhye, Ms. Ashley Willis, and Myles Jordan reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- *Mr. Wood moved for approval of the variance based on findings include in the applicant's submittal, that the lighting will be no taller than the existing lighting and that it meets all of the criteria to issue a variance. Ms. Stevens seconded the motion. All in favor.*

4. **Case V-15-2021, 403 King Street, TMS# 532-05-00-085. Request for relief from the strict application of §156.315 to allow an approximately 7.5-foot front yard encroachment of existing house. The ordinance requires a 15-foot front yard setback.**

- Mr. Robertson reviewed staff comments with the Board.

- Mr. Frank O'Donnell reviewed the request with the Board. He clarified that the request is for relief from the front setback to allow a 7.5 foot encroachment and relief from a side setback to allow a 1.6 foot encroachment. Mr. Robertson and Mr. Pagliarini clarified that both encroachments could be considered under the application submitted.

- There being no comments, Mr. Wolff closed public comment.

- *Mr. Wood moved for denial based on the findings that the denial would not prohibit the use of the property. Mr. Hopkins seconded the motion. Motion passed on a 3 to 1 vote with Mr. Wolff, Mr. Hopkins, and Mr. Wood in favor; Ms. Stevens opposed.*

5. **Case V-16-2021, 520 King Street, TMS# 532-01-00-227. Request for relief from the strict application of §156.119 (G)(2) to allow utilization of a Telecommunications Carrier on Wheels (COW) for a period not to exceed 120 days after beginning broadcasting to allow completion of a new off-site, replacement telecommunications facility. The ordinance limits the use of COWs for a period not to exceed 120 days following a natural disaster or local emergency declaration.**

- Mr. Robertson reviewed staff comments with the Board.

- Mr. Jonathan Yates and Mr. Don Slovic reviewed the request with the Board.

Mr. Jason Walton, 705 Simmons Street, suggested that the 120 days should be better defined on when it starts and ends. He suggested that the start date should be July 1, 2021, since the tower has to be taken down by June 30, 2021. He suggested that the request is not for an actual COW. He expressed concern that the new site would not be completed within the 120 days and that would mean an extension. He expressed concern about the location of the temporary pole and that it might not meet the fall zone requirements.

- There being no further comments, Mr. Wolff closed public comment.

- *Mr. Wood moved for approval of the temporary tower subject to the temporary period being from July 1, 2021-Nov 15, 2021 unless a request for an extension is requested, based on the findings that it meets all of the criteria, in particular the loss of emergency services to residents of the service area for residents during this interim period. Mr. Hopkins seconded the motion.*

Mr. Hopkins moved to amend the motion to include that if the permanent tower is constructed and starts broadcasting prior to the November deadline, that the temporary tower is removed within two weeks of the permanent tower being brought online. Mr. Wood seconded the motion. All in favor.

Mr. Wolff called for a vote on the amended motion. All in favor.

6. **Case V-17-2021, Phillips Community Drainage, TMS# 583-03-00-291. Request for relief from the strict application of §156.201(I)(2) to allow clearing of trees in Critical Line Buffer and widening of the existing maintenance shelf in order to complete construction of stormwater canal and maintenance shelf. The ordinance requires an average thirty-five (35) feet undisturbed buffer with a minimum width of twenty (20) feet.**

This item was withdrawn by staff.

H. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 7:20 pm.

Submitted by,
L. Lynes
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